

October 06, 2020



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 21119

EXPIRATION DATE: 2021-01-31

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Spaceflight, Inc.
Seattle, WA
2. PURPOSE AND LIMITATIONS:
 - a. This emergency special permit authorizes the transportation in commerce of low production lithium ion batteries contained in equipment in alternative packaging. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.185(e)(1)&(3) in that lithium ion batteries contained in equipment are not individually packed in an inner packaging and that the outer packaging is not a UN-Specification packaging, except as specified herein.
5. BASIS: This emergency special permit is based on the application of Spaceflight, Inc. dated September 16, 2020, submitted in accordance with § 107.117 and the determination it is necessary to prevent severe economic loss.

October 06, 2020

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Lithium ion batteries contained in equipment <i>including lithium ion polymer batteries</i>	9	UN3481	N/A

7. SAFETY CONTROL MEASURES:a. OPERATIONAL CONTROLS:

(1) This special permit is valid only for transportation of lithium ion batteries contained in the following equipment (spacecraft): ARCE-1, PTD-1, Astrocast.

(2) Each battery module consists of UN38.3 tested component cells, with the number of modules making up a battery, the total energy capacity of the battery, individual cell manufacturer, and transport state-of-charge as described in Spaceflight's September 16, 2020 application and on file with the Office of Hazardous Materials Safety Approvals and Permits Division.

(3) The spacecraft must be constructed to prevent against accidental operation during transport.

b. TESTING REQUIREMENTS:

(1) Each cell in the batteries must be a type that has passed the required tests in accordance with the UN Manual of Tests and Criteria, 7th Revised Edition.

(2) Each battery (integrated battery modules) contained in equipment must have passed selective testing as described in the Spaceflight's September 16, 2020 application.

October 06, 2020

c. PACKAGING:

(1) The battery contained in equipment (the aggregate spacecraft) must be placed in custom-made foam lined pelican cases as described in Spaceflight's September 16th application and on file with the Office of Hazardous Materials Safety Approvals and Permits Division.

(2) The batteries contained in equipment must be protected from short-circuiting while in transportation.

d. MARKING: Each package prepared under the provisions of this special permit must be plainly marked with the permit number "DOT-SP 21119".

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit, but receives a packaging covered by this special permit, may reoffer it for transportation provided no modification or change is made to the packaging and it is offered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.

October 06, 2020

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

October 06, 2020

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: MK/TG